UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

STATE OF CALIFORNIA, ET AL.,

Defendant.

No. **2:25-CV-01460-DC-CSK PS**

INITIAL SCHEDULING ORDER, PRO SE CASES

This action has been assigned to Magistrate Judge Chi Soo Kim. Because all parties on one side proceed without the assistance of counsel, the Local Rules dictate the Magistrate Judge will (1) resolve all non-dispositive matters, and (2) conduct all hearings and issue findings and recommendations on any dispositive matters. See Local Rule 302(c)(21).

Should the parties wish to consent to the jurisdiction of the Magistrate Judge for all purposes, including for the entry of final judgment, they may do so using the Court's "Consent to Assignment or Request for Reassignment" form. *See* 28 U.S.C. § 636(c). There is no obligation to consent, and under Federal Rule of Civil Procedure 73(b)(1), the judges will not be notified of a party's choice unless all parties have consented.

Because a consent designation assists the Court in determining how the action will be administratively processed, the parties are instructed to make their election and notify the Clerk of the Court as soon as practicable.

Under Federal Rule of Civil Procedure 16 and Local Rule 240, IT IS HEREBY ORDERED:

1. The Clerk of the Court shall send Plaintiff(s) a copy of this order; a summons; and a copy of the "Consent to Assignment or Request for Reassignment" information.[1]
2. Plaintiff shall complete service of process on all Defendants named in the complaint within 90 days from the date of this order. Plaintiff shall provide each Defendant with a copy of (i) the summons; (ii) the complaint; (iii) this order; and (iv) the Consent to Assignment or Request for Reassignment information.
    a. Within 10 days after service of process on a given Defendant, Plaintiff(s) shall file with the Clerk a certificate stating that the Defendant was served under Rule 4.
    b. The Court cautions Plaintiff(s) that this case may be dismissed if service of process is not accomplished within 90 days. See Federal Rule of Civil Procedure 4(m).
3. The parties shall file their completed Consent to Assignment or Request for Reassignment form within 30 days of service of process (or 60 days if the United States, its agencies, corporations, officers, or employees are a party to this action).

If a Defendant responds to the complaint by motion:

4. Defendant(s) shall notice the motion for a hearing, as outlined in Local Rule 230(b). The Court's motion schedule can be found on Judge Kim's webpage on the Court's website https://www.caed.uscourts.gov/CAEDnew/index.cfm/judges/all-judges/united-states-magistrate-judge-chi-soo-kim-csk/).
5. Within 14 days of a Defendant's motion, Plaintiff(s) shall file an opposition (or non–opposition). See Local Rule 230(c). The Court advises Plaintiff(s) that, within 21 days of service of a Defendant's motion under Rules 12(b), (e), or (f), Plaintiff may amend the complaint once as a matter of right. See Federal Rule of Civil Procedure 15(a)(1).

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[1] If this action was originally filed in state court and removed to this Court, the Clerk need not send a summons and complaint to Plaintiff. Instead, the removing party shall (a) immediately serve upon each of the other parties, and upon all parties subsequently joined, a copy of this order and copy of the Consent to Assignment or Request for Reassignment form, and (b) file a notice that these parties have been served.

6. The Court cautions Plaintiff(s) that a failure to timely respond to the motion may result in the loss of a right to be heard at oral arguments, and may be taken as consent to granting of the motion. See Local Rule 230(c).

If a Defendant files an answer to the complaint:

7. Within 30 days after an answer is filed, the parties shall discuss, in person or by telephone, their responsibilities under Federal Rule of Civil Procedure 26(a), including proposed dates for the close of discovery and for the filing of dispositive motions.
8. Within 7 days after the parties' Rule 26 discussion, the parties shall file a joint status report with the Court for the entry of a pretrial scheduling order. This report shall address the relevant portions of Local Rule 240(a), and shall be filed as a joint status report and request for hearing before the Magistrate Judge.

Miscellaneous Orders

9. The parties are reminded of their continuing duty to notify chambers immediately of any settlement or other disposition. See Local Rule 160.
10. While the Court can liberally construe filings by parties who are not represented by counsel, parties who proceed without counsel are still required to comply with the Federal Rules, the Court's Local Rules, and all orders of the court. Under Local Rule 110, a failure to do so "may be grounds for imposition of any and all sanctions authorized by statute or Rule or within the inherent power of the Court," including monetary sanctions, the striking of a pleading or motion, or dismissal of the case.

DATED: October 28, 2025

Chi Soo Kim

CHI SOO KIM
UNITED STATES MAGISTRATE JUDGE